

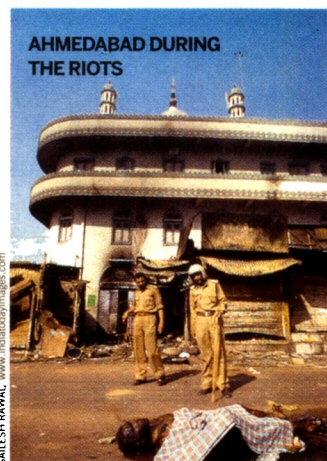
|2002| ELECTORAL REFORMS

Arrested Development

Parties aligned to keep transparency and accountability in politics at bay

On May 2, 2002, the Supreme Court (sc) ventured into virgin territory with a landmark judgement, reminding the Government of India that "in a democracy the citizen has a fundamental right to receive information about candidates seeking to represent them". It directed the Election Commission (EC) to seek information from candidates about their criminal record, financial details and educational qualifications. The sc verdict was the result of a pursuit by a group of IIM-A professors and graduates and a professor at the National Institute of Design, who filed a PIL in the Delhi High Court in 1999, seeking disclosure of pending criminal cases by candidates contesting elections to Parliament. "We were tired of seeing lots of criminals contesting elections," says Jagdeep S. Chhokar, one of the 11 founding members of the Association for Democratic Reforms (ADR). The group won a favourable order and the Government appealed the judgement in the sc, which shot it down. The EC issued orders to implement the judgement, but in 2002 an all-party meeting decided to amend the Representation of the People Act, 1951, to dilute the sc order. Of the three areas of information specified by the court—criminal antecedents, financial background, and educational qualifications—the draft ordinance incorporated "substantially" only the points relating to criminal offences. President APJ Abdul Kalam returned the draft ordinance submitted by the NDA Government, only to sign it later when it was sent back unaltered. The Ordinance was challenged in the sc in October 2002 by the ADR, People's Union for Civil Liberties and *Loksatta*. In 2003 the sc declared the amendment "illegal, null and void" and issued orders to the EC to implement its previous judgement. The controversy brought in focus the basic tenets of transparency and accountability in politics, forcing many parties to discard big-ticket criminals. Says Chhokar: "There are more reforms to be done. We only set the ball rolling."

by Shafi Rahman



THE MAIN EVENT

Gujarat Riots

On the morning of May 7, Amrit Chagganlal, a camel cart owner, was passing through the Sarkhej area on Ahmedabad's outskirts. It was the 70th day communal riots had engulfed Gujarat following the killing of the 57 Ramsevakas at Godhra on February 27. It was a difficult and dangerous time but Chagganlal ventured out to eke out a living. A mob suddenly appeared from nowhere, surrounded him and hacked him to death before throwing his body in a well. Chagganlal was the 933rd victim of the continuing communal violence in Gujarat that showed no signs of ebbing. His killing was in retaliation for the gruesome lynching of two Muslim labourers by a Hindu mob a day earlier in the city. By nightfall, the death toll had crossed the 940 mark.

India Today, May 20, 2002

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- President's Rule is imposed in Uttar Pradesh after polls throw up a hung Assembly
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THERE ARE 150 MPs WITH CRIMINAL CASES PENDING AGAINST THEM IN THE PRESENT PARLIAMENT.